

Court No. - 3

Case :- WRIT - C No. - 33668 of 2021

Petitioner :- Nepal

Respondent :- State Of U P And 3 Others

Counsel for Petitioner :- Abhay Kumar Srivastava

Counsel for Respondent :- C.S.C.,Abhishek Srivastava,Krishna
Agarawal

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Dr. Yogendra Kumar Srivastava,J.

As prayed, put up as fresh in January, 2022.

(Yogendra Kumar Srivastava, J.) (Manoj Kumar Gupta, J.)

Order Date :- 17.12.2021

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Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

None appears for the petitioner.

Sri Abhishek Srivastava, learned counsel for the respondent Nos.2 and 4 states on instructions that against the impugned recovery citation, the petitioner has a right to submit objection before the respondent No.4 under Para 6.8 of the U.P. Electricity Supply Code, 2005 and if such an objection is submitted by the petitioner, it shall be decided by the respondent No.4 in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed of** giving liberty to the petitioner to submit his objection before the respondent No.4 within three weeks from today along with a copy of this order and if such an objection is submitted within the stipulated period, it shall be decided by a reasoned and speaking order by the respondent No.4 within next four weeks after affording reasonable opportunity of hearing to the petitioner.

Order Date :- 7.4.2022

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